Three projects that fail the base check on MPDU-law density

Each page below is the PDF page from the Planning Board document (number at the bottom of each item).

TDR zones (Meadows at Hurley Ridge, Eton Square, and Linthicum West, dropped earlier):

Under the old code (Sec. 59-C-1.395), developers buy TDRs only for market units above base density, and MPDUs are excluded from that count. So total units = base + TDRs bought + 12.5% MPDUs on top. Audrey's check expects no extra units at 12.5% MPDUs, so these fail it.

Meadows: 171 + 113 TDR = 284 market; + 41 MPDUs = 325 (14.4% over 284).

Eton Square: 54 + 52 TDR = 106 market; + 16 MPDUs = 122 (15.1% over 106). The zone max of 130 includes MPDUs.

Linthicum West: 165 + 56 TDR = 221 market; + 32 MPDUs = 253 (14.5% over 221).

Question: is the base 'base + TDRs' (then MPDUs ride on top: keep, as MPDU-law density), or should we drop them as now?

Olney Estates (RNC zone):

Base 35; the full 22% bonus gives 42 and needs 7 MPDUs (15%). The developer converted one MPDU into a market unit under the small-development provision (36 market + 6 MPDUs). In units it is at the 22% top; in MPDU share (14.3%) it earns only about 16%.

Question: code it at the 15% it was approved against (keep, at the kink), or drop?

Pages:

2. Meadows at Hurley Ridge, site plan 8-03011 staff report (2003). Footnote and MPDU calculations: base 171 + TDR 113, MPDUs 41 on top = 325.
3. Eton Square, site plan 8-04033 staff report part 2 (2004). Data table: max 130 incl MPDUs; 106 market = 54 base + 52 TDRs; 16 MPDUs.
4. Eton Square, same report. MPDU calculations (12.5% of 122) and TDR calculations (TDRs bought only for market units above base).
5. Linthicum West, resolution MCPB 22-026 (2022, old code). The rule in words: 'TDRs must be purchased for all market rate units above the base density. MPDUs are excluded from the calculations.' 165 base + 56 TDR = 221 market + 32 MPDUs = 253.
6. Linthicum West, continued: 56 market units above base = 56 TDRs.
7. Olney Estates, site plan 8-06019 staff report (2006). Data table: max 35 du + density bonus = 42.
8. Olney Estates. Staff: base 35; 22% bonus gives 42 and needs 15% = 7 MPDUs.
9. Olney Estates. The dispute: the applicant converts one required MPDU into a market unit (36 market + 6 MPDUs); staff disagree but recommend approval.
10. Olney Estates. MPDU calculations: base 35, proposed 42, bonus 7 or 20%.
11. Zoning code as of 2014, Sec. 4.9.15.B.1.d (TDR overlay): the Chapter 25A bonus is calculated after base density is raised through TDRs.

ANALYSIS: Conformance to Development Standards

PROJECT DATA TABLE

Zoning	R-200/TDR-4
Net Tract Area (ac.):	62.55 ac. (Phase II)
Proposed Use:	Residential

Development Standards	**Permitted/ Required**	**Proposed**
Density (Phase II)*	250	250
Dwelling Units (One-family detached)	250	250
Single-family detached		31
Single-family attached		219
Moderately-priced DU's included @ 12.5%		41
Transferable Development Rights incl.		87
Building Coverage (%):	25%	<25
Building Height (ft.):	40	35
Minimum lot size (sf):	4000 sf	5,775 sf +(SFD) 4,000 sf (SFA)
Setbacks (ft.):		
Single-family detached (SFD)		
Front yard	20	20
Side yard	4	4
Rear yard	20	20
Single-family attached (SFA)		
Front yard	10	20
Side yard	0	0
Rear yard	0	0

*Overall density on site for Phases I & II is 325 dwelling units using TDR option (Base density=171 d.u.'s, TDR density=2/3 (171 d.u.'s), MPDU's=41 d.u.'s [12.5%])

MPDU CALCULATIONS
(Phases I & II)

Base density (2 du/ac)	171 dwelling units
TDR density (2/3 of TDR density)	113 dwelling units
MPDU's Required (12.5%)	41 dwelling units
TDR's provided in Phase I	26 dwelling units
TDR's provided in Phase II	87 dwelling units
MPDU's provided in Phase I	0 dwelling units
MPDU's provided in Phase II	41 dwelling units

ANALYSIS: Conformance to Development Standards

PROJECT DATA TABLE

Zoning	R-60/TDR-12
Total Site Area (ac.):	10.88 ac.
Proposed Use:	One-family attached dwelling units (Optional Method using TDRs & MPDUs)

Development Standards	**Permitted/ Required**	**Proposed**
Maximum Density Allowed (10.88 x 12 d.u./ac.)	130	122
Density Shown:	130	122
Base Density: (10.88 ac. X 5 d.u./ac.)		54
TDR Density: (10.88 ac. X 7 d.u./ac.)		76
MPDUs included @ 12.5%	16	16
TDRs: (76 du's @ 2/3) (106[Market Rate] – 54[Base Density] = 52)	51	52
Building Coverage (%):	40%	17.6%
Building Height (ft.):	35	35
Min. Lot Size (ft.):	1,500	
Market Rate (18 x 60):		1080*
MPDUs (16 x 60):		960*
Parking (ft):		
Market Rate Units: (106 du's @ 2 per unit)	212	212
MPDUs: (16 garage/16 tandem spaces)	32	32
Visitor spaces:		87
Total	244	331**
Green Area (%):	51%	61.5%

* Waiver is being requested to the minimum lot size for the MPDU units

** Parking for the apartment units consists of 48 garage spaces and 508 surface parking spaces. This does not include the parking allowed on Cider Barrel Drive and Oxbridge Drive.

MPDU CALCULATIONS

MPDUs Required (12.5%) (122 d.u.'s x 12.5%)	16 dwelling units
MPDUs provided	16 dwelling units

TDR CALCULATIONS

Base density (10.88 ac. x 5du/ac)	54 dwelling units
TDR density (10.88ac. x 7 d.u./ac.)	76 dwelling units
TDRs required (76@2/3)	51 TDRs
(106[Market Rate] – 54[Base Density] = 52)	
TDR's provided	52 TDRs

RECREATION CALCULATIONS

	Tots	children	teens	adults	seniors
Demand Points (Required per 100 d.u's)					
Townhouse (122)	20.74	26.84	21.96	157.38	8.54
Total Demands Pts.	20.74	26.84	21.96	157.38	8.54
Supply Points					
On-Site Facilities:					
Pedestrian system	2.07	5.37	4.39	70.82	3.84
Tot Lot	9.00	2.00	0.00	4.00	1.00
Nature Trails	1.04	2.68	3.29	23.61	1.28
Natural Areas	0.00	1.34	2.20	15.74	0.43
Picnic/Sitting (6)	6.00	6.00	9.00	30.00	12.00
Total On-Site	18.11	17.39	18.88	144.17	18.55
Off-Site Facilities:					
Off-Site Total*	7.26	9.39	7.69	55.08	2.99
Total Points	25.37	26.78	26.57	199.25	21.54
Percent of Requirements	122%	99%	121%	127%	252%

*The credit for each off-site facility must not exceed 35% of its supply value for each population category. These numbers reflect that limitation. Credit includes Neelsville Middle School, Clear Spring Park, Montgomery College, James Daly Elementary School, Germantown East Park.

a. Use Standards

RE-1 Zone

Under Section 59-C-1.31 of the Zoning Ordinance in effect prior to October 29, 2014, One-Family Detached Dwellings are a permitted land use in the RE-1 zone. Under Section 59-C-1.61 One-Family Semidetached Dwellings (duplexes) are permitted under the optimal method of development as moderately priced dwelling units (MDPUs) "in order to facilitate the construction of those units" as long as such a development is served by public sewer (Section 59-C-1.62, Footnote #8).

This Application includes all One-Family Semidetached dwellings to be provided as MPDUs. Furthermore, the Application in its entirety will be served by public sewer service. Therefore, these use standards are satisfied.

Transferable Development Rights ("TDR-2") Overlay Zone

The TDR-2 overlay zone allows for additional density up to 2 dwelling units per acre using the R-200 MPDU standards in Section 59-C-1.395. TDRs must be purchased for all market rate units above the base density. MPDUs are excluded from the calculations. Thus, for the Application, the TDR calculations are as follows:

Gross Tract Area	165.25 acres	
Zoning	RE-1/TDR-2	
Base Density (RE-1 optional method)	165 units	= 165.25 acres x 1 du/acre
Max. Density with TDR's (TDR-2 Overlay)	330 units	= 165.25 acres x 2
Maximum TDRs allowed	165 TDRs	= 330 - 165
Minimum number of TDRs required	109 TDRs	= 2/3 x 165
Total Number of Units provided	253 units	
Minimum MPDUs required (12.5%)	32 MPDUs	= 253 units x 0.125
Number of Market Rate units provided	221 units	= 253 – 32
Number of Market Rate Units above Base Density	56 units	= 221 – 165
Number of TDR's provided	56 TDRs	

The Planning Board approved Preliminary Plan No. 120050030 in March of 2005. At that time, the Board utilized the provision in Section 59-C-1.393

allowing for a density that was lower than the maximum allowed by the Overlay Zone, which allowed for the purchase of fewer than the 2/3rds of TDRs typically required. This reduction was allowed for: the protection of environmentally sensitive resources, such as steams, stream buffer, steep slopes; dedication of future Parkland; and compatibility with the surrounding rural setting. The lower density is more appropriate for this Property given the existing environmental resources and extensive area of Parkland dedication, which combined effectively decrease the usable area for the development. The Applicant is providing 56 market rate units above the base density, which is equivalent to 56 TDRs. As conditioned, the Applicant is required to acquire 56 TDRs to account for the additional density, which will allow for the preservation of farmland within TDR sending areas elsewhere in the County. Therefore, the Application meets the requirements of the Overlay Zone.

Requirements of the RE-1 with TDR-2 Overlay Zone

Based on the following data table, which sets forth the development standards approved by the Planning Board, within the Zoning Ordinance in effect prior to October 29, 2014, and binding on the Applicant, and based on other evidence of record, the Application meets all of the applicable requirements of the RE-1 with TDR-2 Overlay Zone.

Table 1 – Development Data Table

Development Data			
Zoning	RE-1/TDR-2 (reviewed under the Zoning Ordinance in effect prior to 10/29/2014)		
Site Area	165.25 acres		
Uses	**Permitted (as allowed by Zoning Ordinance in effect on October 20, 2014)**	**Approved with Preliminary Plan Amendment**	**Provided with Site Plan**
Residential			

PROJECT DESCRIPTION: Prior Approvals

Preliminary Plan

On July 13, 2006, the Planning Board will review the Preliminary Plan 120050920 for creating 42 residential units including six MPDUs for the Olney Estates Property.

ANALYSIS: Conformance to Development Standards

DATA TABLE (RNC ZONE)

Development Standard	Required/Permitted Zoning Ordinance	Proposed for Approval
Gross Tract Area (ac/sf.):	10 acres .	107.35 acres
Development Density	0.33 D.U./Ac + density bonus Maximum 35 D.U. + density bonus according to the Master Plan Text Amendment to the RNC Zone allowed more than 35 units if MPDUs are provided	0.4 D.U./Ac 42 D.U. 36 one-family detached units and 6 MPDUs for a total of 42 units
MPDUs	6 MPDUs[1]	6 MPDUs
Minimum Lot Area		
SF attached	Not Specified	4,577 sq.ft
SF detached	4,000 sq.ft.	13,349 sq.ft.
Minimum Lot Width		
SF attached		
At street front	Not specified	28'
SF detached		
At street front	25'	28'
Minimum Building Setbacks		
SF detached		
From Public Street	15'	28'
From Adjoining Lot - Side	8'	8'
From Adjoining Lot - Rear	0'	10'
SF attached		
From Public Street	15'	28'
For end unit - Side	8'	8'
From Adjoining Lot - Rear	0'	10'[2]

Development Standard	Required/Permitted Zoning Ordinance	Proposed for Approval
Maximum Building Height		
Main dwelling	35'	35' (as measured from the level of approved street grade opposite the middle of the front of a building to the highest point of roof surface of a flat roof; to the mean height level between eaves and ridge of a gable, hip, mansard, or gambrel roof; street grade AND as referenced in the building height table and on the site plans. A condition of approval has been added to add a building height table and street level references on the site plan)
Accessory Building	5' for rear and side yards and 60' from the street	5' for rear and side yards and 60' from the street
Maximum Building Coverage		
SF attached	Not specified	60%
SF detached	35%	35%
Rural Open Space	65% to 85% (59.8 to 78.2 acres)	71.92% (77.21 acres)
Parking	2 per unit 84 for 42 units	2 per unit 84 for 42 units

1. In Development Review (DRD) and Community Based Planning (CBP) staff's opinion, the proposed project achieves the bonus, market rate units referred to in the section without converting an MPDU to a bonus market rate unit. At the maximum base density of 0.33 units per acre, the proposed site has a maximum base density of 35 units (107.35x0.33=35.4 rounded down to 35). Since the number of requested units exceed 19, the proposed development is subject to the MPDU law, which requires a minimum of 12.5% of the units to be MPDUs if no bonus density is proposed, which translates into 5 MPDUs (35x0.125=4.37, rounded up to 5). The developer has the option to achieve a density bonus in exchange for additional MPDUs on a sliding scale prescribed in the MPDU law. The maximum density bonus of 22% requires the provision of 15% of the total units as MPDUs.

   The proposed development requests a maximum density bonus of 22% with 15% MPDUs. Therefore 35x1.22=42.7, rounded down to 42 units total is the maximum density allowed with the bonus. MPDU's are therefore required at 15%: 42x0.15=6.3, rounded up to 7 MPDUs. The density calculation chart for this property is as follows:

Density scenario	Total units	Market rate	MPDUs
Base density (12.5% MPDUs)	**35**	30	5
With 22% bonus (15%MPDUs	**42**	35	7
Additional units	**7**	**5 (bonus)**	**2**

   Based on this scenario, the proposed development achieves 5 bonus, market rate units by providing 2 additional MPDU units above the minimum requirement of 5 MPDUs.

DRD and CBP staff believe that because the density bonus is optional, any bonus scenario must be considered against the base density requirement calculated at the 12.5% MPDU provision. Only when the maximum base density would not require the minimum 12.5% MPDUs can this provision of the law be applied to achieve one additional market rate bonus unit by reducing the required MPDUs by one.

According to the applicant's interpretation of the MPDU legislation, the project is entitled to convert one of the required MPDUs to a market unit. The applicant has therefore, provided 36 market rate units and six MPDUs.

2. A condition of approval has been added to require a minimum rear yard setback of 20 feet for the one-family detached units.

RECREATION CALCULATIONS

	Tots	**Children**	**Teens**	**Adults**	**Seniors**
Demand Points					
Demand per 100 d.u.					
SFDI (20,000+ sq.ft)	10.00	20.00	22.00	85.00	8.00
SFDII (7,000 to 19,999 sq.ft)	13.00	24.00	25.00	106.00	11.00
SFDIII (< 7,000 sq.ft.)	14.00	19.00	23.00	127.00	13.00
TH	17.00	22.00	18.00	129.00	7.00
Demand for 40 units					
SFDI (24 units)	**2.40**	**4.80**	**5.30**	**20.40**	**1.90**
SFDII (12 units)	**1.60**	**2.90**	**3.00**	**12.70**	**1.30**
TH (6 units)	**1.00**	**1.30**	**1.10**	**7.70**	**0.40**
Total Demand	**5.00**	**9.00**	**9.40**	**40.80**	**3.60**
Supply Points					
Multiage Play Area	9	11	3	7	1
Pedestrian System	0.10x5.00 0.50	0.2x9.00 1.80	0.2x9.40 1.88	0.45x40.80 18.36	0.45x3.60 1.62
Open Play Area II (2)	6	8	8	20	2
Total Supply Points	**15.50**	**20.80**	**12.88**	**45.36**	**4.62**

Recreational Demand is met on site.

MPDU CALCULATIONS

Base Density allowed by the Zoning Ordinance - 35

Proposed Density – 42

Density Bonus requested – 7 or 20%

MPDU required for 20% bonus – 14.5%

No. of MPDUs required (42x14.5%) = 6.09 = 7

No. of MPDUs provided = 6

ANALYSIS:

Conformance to Master Plan

The subject property is zoned RNC and located in the southeast quadrant of Olney within the 2005 Olney Master Plan area. The property is identified as site #12 in the specific property recommendations section of the Plan on page 36. The Plan recommended a maximum base density of 0.33 units per acre for an optional method (cluster) development on community sewer and water on this property. At the density proposed (35 units) MPDUs must be provided in accordance with the MPDU law. The maximum permitted density can be increased through the bonus density provisions of the law. The Plan contains the headwaters of the Northwest Branch and significant forest resources.

The Plan recommends any housing development must be clustered near Old Baltimore Road to protect environmental resources on this property. The proposed layout clusters the housing development in two areas along Old Baltimore Road. The proposal preserves more than 70% of the property as rural open space. The proposed plan achieves lot size diversity ranging from approximately 4,580 square feet to 58,830 square feet.

The Community Planning Division has stated that the proposed layout is consistent with the master plan. (attached memo dated March 20, 2006). [Appendix C]

permit to determine compliance with master plan recommendations and the provisions of this Overlay zone. If an existing building is located on the site or on an adjacent property, the minimum setback of the zone may be reduced to conform to the existing setback on the site or on the adjacent property.

E. Existing Buildings and Uses

Any use or building existing on the effective date of the Sectional Map Amendment implementing the Takoma Park/East Silver Spring Commercial Revitalization Overlay Zone that was a conforming use or building on that date, but that does not conform to the standards of the Overlay zone, may continue as a conforming use or building and may be rebuilt, repaired, or reconstructed. Any such building or use may expand up to 1,000 square feet with site plan approval under Section 7.3.4.

Section 4.9.15. Transferable Development Rights (TDR) Overlay Zone

A. Standard Method

Development in the TDR Overlay zone is allowed under the standard method of development without the use of Transferable Development Rights and must satisfy the development and density limitations in the underlying zone (see Division 4.3 through Division 4.6). In addition, standard method development in the TDR Overlay zone may be approved under the optional method Cluster Development procedures or the optional method MPDU Development procedures, if the property satisfies the minimum requirements for these development options in the underlying zone.

B. Optional Method

1. In General

The TDR Overlay optional method of development permits an increase in the maximum residential density, if the development satisfies the requirements for optional method development using Transferable Development Rights under Section 4.9.15.B.

a. Applicability

The procedures and requirements in Section 4.9.15.B apply to the transfer of development rights from land in the AR zone to land in a Transferable Development Rights (TDR) Overlay zone. The Planning Board may approve subdivision of such land at densities up to the maximum density allowed in the applicable TDR Overlay zone and substantially conforming to the recommendations in the applicable master plan.

b. General Provisions

A request to use TDRs on a property under the optional method must be in the form of a preliminary subdivision plan submitted under Chapter 50.

c. Recording of Development Right

i. An easement to the Montgomery County government limiting future construction of dwellings on a property in the AR zone by the number of development rights received must be recorded among the land records of the County before recordation of a final record plat for a subdivision using transferred development rights.

ii. A final record plat for a subdivision using transferred development rights must contain a statement including the development proposed, the zoning classification of the property, the number of development rights used, and a notation of the recordation of the conveyance as required by Section 4.9.15.B.

d. Development with Moderately Priced Dwelling Units

i. A property developed under Section 4.9.15.B must satisfy Chapter 25A.

ii. A density bonus allowed under Chapter 25A is calculated after the base density of the property has been increased under Section 4.9.15.B through TDRs.

iii. In a Rural Residential or Residential zone, development using TDRs and providing MPDUs above 12.5% must follow the requirements under optional method MPDU Development.